

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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NIKITA PERTSEV,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
LAUREN M. SHEPHERD Shield Number 4679**

Defendants.
-----X

Date Summons

Filed: _____

Index No.: _____

**PLAINTIFF DESIGNATES
KINGS COUNTY
AS THE PLACE OF
THE TRIAL**

S U M M O N S

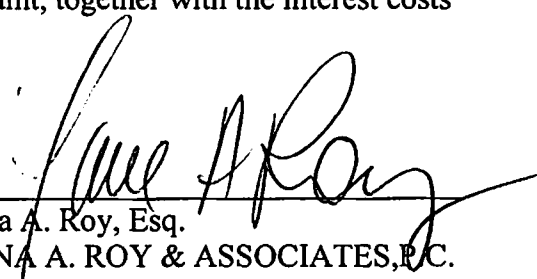
**THE BASIS OF VENUE
IS PLACE OF
OCCURRENCE**

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer on the plaintiff's attorney within 20 days after the service of this -summons exclusive of the day of service of this summons, or within 30 days after of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the interest costs and/or disbursements of this action.

DATED: Garden City, New York
December 19, 2017


Yana A. Roy, Esq.
YANA A. ROY & ASSOCIATES, P.C.
1225 Franklin Avenue,
Suite 325
Garden City, New York 11530

**DEFENDANTS' ADDRESSES:
CORPORATION COUNSEL OF
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007**

Detective Lauren M. Shepherd Shield No. 4679
c/o 62nd Police Precinct
1925 Bath Avenue
Brooklyn, NY 11214

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

-----X

NIKITA PERTSEV**Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
LAUREN M. SHEPHERD Shield Number 4679****Defendants.**

-----X

Plaintiff NIKITA PERTSEV, by his attorneys YANA A. ROY & ASSOCIATES,
P.C., by YANA A. ROY, Esq., principal, complaining of the defendants, respectfully
shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff NIKITA PERTSEV was a resident of KINGS County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE") was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant DETECTIVE LAUREN M. SHEPHERD, Shield No. 4679 ("DETECTIVE SHEPHERD") was and is a New York City detective employed by Defendants.

BACKGROUND

5. On September 25, 2016, without just cause or provocation, Defendants, including DETECTIVE SHEPHERD, a detective with defendant NEW YORK CITY POLICE DEPARTMENT, intentionally and falsely accused Plaintiff of having committed the crime of Burglary in the Third Degree and related offenses.
6. On September 25, 2016, at approximately 5:30 p.m., in the vicinity of Bay Parkway and 60th Street, County of Kings, State of New York, Defendants, their agents, servants and/or employees, intentionally handcuffed Plaintiff and placed Plaintiff under arrest without just cause or provocation and with reckless and negligent disregard for the truth.
7. On September 26, 2016, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff was commenced.
8. Plaintiff was unlawfully detained for approximately seven days until he was released from custody on or about October 2, 2016.
9. Plaintiff was maliciously prosecuted and the criminal matter was terminated in favor of Plaintiff, in that all charges against Plaintiff were dismissed, upon information and belief, on or about March 31, 2017.

PROCEDURAL POSTURE

10. On June 5, 2017, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process by USPS First Class registered mail return receipt requested, which Notice of Claim advised the Defendant of the nature,

place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
12. A 50-H hearing has been held.
13. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
14. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

15. Paragraphs 1-14 are incorporated by reference as fully set forth herein.
16. The Defendants, including DETECTIVE SHEPHERD, their agents, servants and employees, arrested and confined Plaintiff, as described in paragraphs 5-9, and intended to confine Plaintiff. Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.
17. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and the ability to enjoy life while he was imprisoned. Plaintiff also suffered actual physical injuries, emotional distress, humiliation and fear and intimidation for his safety and damage and loss to his personal property.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.

19. Upon information and belief, on or about September 25, 2016, and from that time until the dismissal of charges on or about March 31, 2017 by the Honorable Judge presiding at Kings County Criminal Court, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent person, without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.
20. The Defendants, their agents, servants and employees, failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.
21. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
22. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, physical injury and harm, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety and damage and loss to his personal property.
23. The criminal matter was terminated in Plaintiff's favor in that all pending charges against Plaintiff were dismissed and sealed on March 31, 2017.

THIRD CAUSE OF ACTION: NEGLIGENT SUPERVISION

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. Defendant CITY, through its agents, servants and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating and training of the NYPD officers involved in this matter, including DETECTIVE SHEPHERD.
26. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers and detectives involved herein, regarding the law of arrest, search and seizure.
27. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers and detectives not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
28. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to illegally search and seize, falsely arrest, and maliciously prosecute Plaintiff.
29. As a result of the negligence of Defendants, Plaintiff sustained multiple injuries, including loss of liberty, physical injuries, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety and damage and loss to his personal property.

FOURTH CAUSE OF ACTION: NEGLIGENT HIRING

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. The Defendants had the responsibility for hiring the police officers and detectives that arrested Plaintiff, including DETECTIVE SHEPHERD.
32. The Defendants were negligent in hiring the police officers and detectives that arrested Plaintiff, including DETECTIVE SHEPHERD.

33. As a result of the negligence of the Defendants, Plaintiff sustained multiple physical and emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety and damage and loss to his personal property.

FIFTH CAUSE OF ACTION:
PURSUANT TO 42 UNITED STATES CODE, SECTION 1983
AND 42 UNITED STATES CODE, SECTION 1988.

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.
35. DETECTIVE SHEPHERD was at all times relevant, duly appointed and acting as a police detective with defendant NEW YORK CITY POLICE DEPARTMENT.
36. At all times mentioned herein, DETECTIVE SHEPHERD was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
37. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of KINGS County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
38. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
39. On September 25, 2016, at approximately 5:30 p.m., in the vicinity of Bay Parkway and 60th Street, County of Kings, State of New York, DETECTIVE SHEPHERD, while effectuating the seizure of Plaintiff, did search, seize and grab the person of Plaintiff without a court authorized arrest or search warrant.

Defendants, including DETECTIVE SHEPHERD, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants did not possess probable cause to arrest Plaintiff.

40. The above action of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to Plaintiff's person;
- b. Freedom from battery to Plaintiff's person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

41. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

42. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a physical and psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

**EIGHTH CAUSE OF ACTION: INTENTIONAL INFLICTION OF EMOTIONAL
DISTRESS**

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

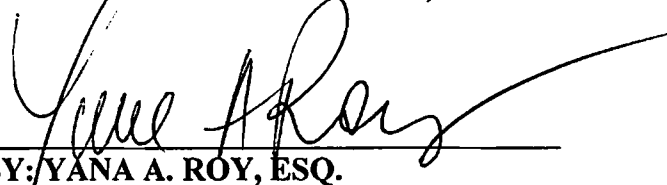
44. The arrest of the Plaintiff by the Defendants constitutes extreme and outrageous conduct.

45. In arresting the Plaintiff, the Defendants intended to cause, or disregarded a substantial probability of causing, severe emotional distress in Plaintiff.
46. The Defendants false arrest, false imprisonment, abuse of process, malicious prosecution of the Plaintiff is the cause of Plaintiff's injuries.
47. As a result of the conduct of the Defendants described in the previous paragraph, Plaintiff suffered severe emotional distress, including loss of liberty, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Garden City, NY
December 19, 2017

YANA A. ROY & ASSOCIATES, P.C.



BY: YANA A. ROY, ESQ.

Attorney for Plaintiff
1225 Franklin Avenue, Suite 325
Garden City, NY 11530
(516) 216-1675

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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NIKITA PERTSEV,

Plaintiff

Index No.

VERIFICATION

-against-

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
LAUREN M. SHEPHERD Shield Number 4679**

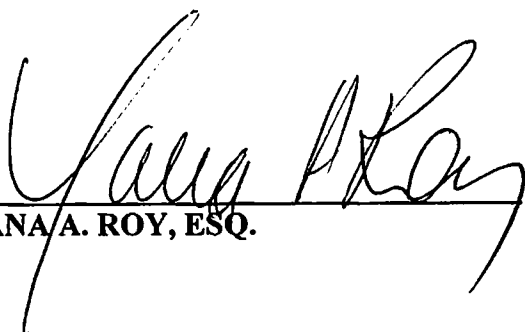
Defendants

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I, **YANA A. ROY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains her office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Garden City, NY
December 19, 2017


YANA A. ROY, ESQ.

Index No. _____

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NIKITA PERTSEV

Plaintiff,

- against -

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
LAUREN M. SHEPHERD Shield Number 4679**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE LAW FIRM OF YANA A. ROY & ASSOCIATES, P.C.

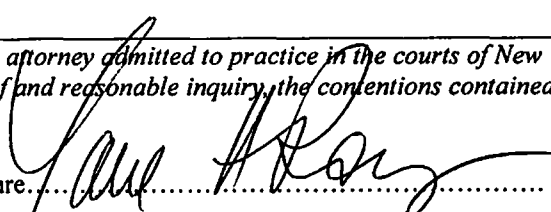
Attorney(s) for **PLANTIFF**

1225 FRANKLIN AVENUE, SUITE 325
GARDEN CITY, NY 11530

(516) 216-1675 FAX (718) 375-0033

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12/19/17

Signature.....

Print Signer's Name... Yana A. Roy, Esq.

Service of a copy of the within

is hereby admitted.

Dated:

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Attorney(s) for